

24NWCV04924 24NWCV04924

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Case Number: 24NWCV04924 Hearing Date: June 30, 2026 Dept: P

JOEL CESSNA, ET AL. v. EDWARD YOUNG, ET AL.

CASE NO.: 24NWCV04924

HEARING: 06/30/2026 @ 9:30 AM

#16

TENTATIVE ORDER

I.

Defendant Edward Young's demurrer is

CONTINUED to Tuesday, August 11, 2026 in Dept. P at 9:30 AM.

II.

The parties are ORDERED to meet and

confer. Defendant Young's meet and confer declaration must be filed on or

before July 27, 2026. Any supplemental opposition is due by July 31, 2026 and

any supplemental reply is due by August 6, 2026. See below for a detailed order.

Moving party to give notice.

Defendant Edward Young (Young) demurs to the first amended complaint (FAC).

Background

On December 18, 2024, Plaintiffs Joel R. Cessna (Cessna) and

The Young and Cessna Partnership (the Partnership), a general partnership (Plaintiffs), filed this breach of contract action against Defendants Edward L Young (Young), Sunny Rose Corporation (SRC), Junk King Enterprises, Inc. (JKE), Junk King Franchise Systems, Inc. (JKFS), and Does 1 through 10. On April 16, 2026, following the Court's ruling on Young's demurrer to the complaint sustaining the demurrer with leave to amend, Plaintiffs filed the operative FAC.

The FAC alleges the following: Young and Cessna have known each other for over thirty years. (FAC, ¶ 13.) In 2011, Young joined JKE and/or JKFS as a franchise owner and encouraged Cessna to invest in the Junk-King franchise (Franchise). (FAC, ¶¶ 14-15.) On June 17, 2011, Young and Cessna executed a partnership agreement (Partnership Agreement) under which the two would be legal partners in the Franchise and by which "Young agreed to sell a 49% working interest in the Franchise to Mr. Cessna for the sum of \$250,000.00. Mr. Cessna's 49% working interest was to be a fully participating partnership interest in every aspect of the Franchise with no exclusions or exceptions of any kind whatsoever." (FAC, ¶¶ 16-19.) The FAC alleges that since then, Young breached the Partnership Agreement by paying Cessna less than the amount owed, underperforming under the Partnership Agreement, and misrepresenting the nature of Cessna's investment. (FAC, ¶¶ 26-46.) Prior to the formation of the Partnership Agreement and without Cessna's knowledge, Young incorporated SRC. (FAC, ¶ 22, 25.)

The FAC alleges an alter ego relationship between Young and SRC. (FAC, ¶¶ 22-25.)

The FAC asserts nine causes of action: (1) breach of contract, (2) breach of implied covenant of good faith and fair dealing, (3) violation of Corporations Code section 25401, (4) breach of fiduciary duty, (5) violation of Penal Code section 496, (6) accounting, (7) declaratory relief re Cessna's share of the franchise, (8) declaratory relief re JKE, and (9) declaratory relief re JKFS.

Meet and Confer

Code of Civil Procedure section 430.41 requires that the demurring party meet and confer in person, by telephone, or by video conference at least five days before the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party shall file and serve a declaration stating either: (a) "The means by which the demurring party met and conferred...and that the parties did not reach an agreement resolving the objections raised in the demurrer" or (b) "[t]hat the party who filed the pleading subject to demurrer

failed to respond to the meet and confer request...or otherwise failed to meet and confer in good faith." (Code Civ. Proc., § 430.41, subd. (a)(3).)

There is no meet and confer declaration filed with the demurrer. The Court notes that there was no meet and confer declaration filed with Young's first demurrer. As to the first demurrer, the Court stated the following:

There is no meet and confer declaration filed with the demurrer. As Plaintiffs do not raise this defect in opposition, and in the interest of judicial economy, the Court proceeds to rule on the merits of this demurrer. The Court admonishes Young for his failure to meet and confer as required under the Code.

(Order, 3/24/26.)

Herre, in opposition, counsel for Plaintiffs attests that "[n]either Young nor his counsel of record made attempts to meet and confer prior to filing the Demurrer: Young's counsel neither made attempts to reach out by telephone nor by email to meet and discuss, no less discuss the [FAC]." (Sir Decl., ¶ 3.)

Plaintiffs argue that based on Young's failure to meet and confer as required under the Code, the parties were deprived of the opportunity to determine whether Young's objections could be resolved without motion practice and Plaintiffs were not apprised of the claims that Young believed to be objectionable until they were served with the demurrer.

Despite receiving admonishment in the Court's prior Order, Young fails to attempt to meet and confer or file a declaration to extend the time to meet and confer, again. (See Code Civ. Proc., § 430.41, subd. (a).) While the Court does not sustain or overrule a demurrer on the basis of an insufficient meet and confer process, the Court finds a continuance warranted to permit the parties to meet and confer to informally resolve this dispute. (Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal.App.5th 348, 355, n. 3 [the Court "retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer."].)

Therefore, Young is ordered to meet and confer with Plaintiffs. If, after exhausting those efforts, court intervention is needed, the

parties may appear and argue the merits on the continued hearing date. If, after meeting and conferring, Young seeks to argue the demurrer, counsel for Young is instructed to file a meet and confer declaration which outlines the issues discussed and the remaining disputed issues for which a ruling is required.

Accordingly, Young's demurrer to the FAC is CONTINUED to Tuesday, August 11, 2026 in Dept. P at 9:30 AM. The parties are ORDERED to meet and confer. Young's meet and confer declaration must be filed on or before July 27, 2026. The meet and confer declaration shall update the Court on the remaining issues. Any supplemental opposition is due by July 31, 2026 and any supplemental reply is due by August 6, 2026. If there is no meet and confer declaration filed by July 27, 2026, the Court may presume the issues in this demurrer are moot.